

MUTUAL NON-DISCLOSURE AGREEMENT (SHORT FORM)

This Mutual Non-Disclosure Agreement (this "Agreement") is made effective as of the Effective Date by and between the parties identified on the signature page (each, a "Party" and together, the "Parties"). The Parties wish to explore a potential business relationship and may exchange Confidential Information in connection therewith.

1. Confidential Information. "Confidential Information" means any non-public information disclosed by one Party to the other, whether orally, in writing, or in any other form, that is marked as confidential or that would reasonably be understood to be confidential given the nature of the information and the circumstances of disclosure.

1.1 Exclusions. Confidential Information does not include information that (a) is or becomes generally available to the public other than as a result of disclosure by the Receiving Party, (b) was known to the Receiving Party on a non-confidential basis prior to disclosure, or (c) becomes available to the Receiving Party on a non-confidential basis from a source other than the Disclosing Party, provided that such source is not bound by a duty of confidentiality.

2. Term. This Agreement shall remain in effect for a period of two (2) years from the Effective Date. The Parties' obligations of confidentiality shall survive termination of this Agreement for an additional three (3) years.

3. Return of Materials. Upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession, including all copies and extracts thereof, and shall certify in writing such return or destruction.

4. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

5. Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous communications, understandings, and agreements, whether oral or written, between the Parties with respect to such subject matter.

6. Injunctive Relief. The Parties acknowledge that monetary damages may be inadequate to remedy a breach of this Agreement, and that the non-breaching Party shall be entitled to seek injunctive relief and other equitable remedies to prevent or restrain a breach.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PARTY A SIGNATURE: _____

PARTY B SIGNATURE: _____